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ATTORNEY GENERAL JAMES UTHMEIER FILES FIRST-IN-THE-NATION STATE-LED LAWSUIT AGAINST OPENAI, CEO SAM ALTMAN FOR DECEPTIVE PRACTICES AND HARMS TO FLORIDIANS

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Courtesy of the Office of the Attorney General

TALLAHASSEE, Fla.—Attorney General James Uthmeier announced legal action against OpenAI and its Chief Executive Officer, Sam Altman, alleging that the company knowingly released and aggressively marketed ChatGPT to the public—including to children—while concealing serious risks, suppressing internal safety warnings, and deceiving Floridians about the true nature and dangers of the product.

“Today, we announced the first-in-the-nation state-led lawsuit against OpenAI and its CEO, Sam Altman,” **said Attorney General James Uthmeier.** “OpenAI and Altman ignored internal and external safety warnings, put children at great risk, and allowed a dangerous product to reach millions of Floridians.”

“Today’s AI companies have largely assisted with the evolution of the digital playground. Protecting our children means teaching them to navigate not just the real people behind the screens, but the artificial minds engineered to mimic them,” **said FDLE Special Agent in Charge Mike Duffey.** “Parental vigilance must shift from simply monitoring who our children talk to, to ensuring they understand what they are talking to—because a machine programmed to please can never replace the safety of human boundaries.”

The civil complaint alleges that OpenAI and Altman prioritized speed to market and commercial gain over user safety, disregarded repeated warnings from experts both inside and outside the company, and deployed a product that facilitates and encourages harm—including self-harm and violence—while falsely assuring users it was safe.

The complaint also alleges that ChatGPT collects data from minors without meaningful parental oversight, causes behavioral addiction and cognitive harm, and is prone to dangerous errors that the company has actively downplayed.

Florida law prohibits unfair and defective trade practices. The complaint alleges that OpenAI’s conduct causes ongoing harm to Floridians and demands accountability. The State seeks damages on behalf of the people of Florida and an end to the deceptive and dangerous practices outlined in the complaint.

Last month, the Office of Statewide Prosecution launched a criminal investigation after prosecutors reviewed chat logs between ChatGPT and Phoenix Ikner, the gunman who opened fire at Florida State University on April 17, 2025, claiming two lives and injuring several others. The criminal investigation is ongoing.

To read the full complaint as filed in the Tenth Judicial Circuit of Florida, click here.

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Victim Services

Dozier Claims

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